

MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement ("Agreement") is entered into as of the Effective Date by and between Acme Consulting LLC ("Discloser") and Beta Industries Inc. ("Recipient"), each a "Party" and collectively the "Parties."

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1. DEFINITION OF CONFIDENTIAL INFORMATION

"Confidential Information" means any information disclosed by either Party, whether orally, in writing, or in any other form, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure, including technical data, trade secrets, business plans, and customer lists.

2. CONFIDENTIALITY OBLIGATIONS

The Recipient agrees to hold and maintain the Confidential Information in strict confidence and, except as required by law, not to disclose the Confidential Information to any third party without the prior written consent of the Discloser. The Recipient shall use the same degree of care to protect the Confidential Information as it uses to protect its own confidential information of like importance, but in no event less than reasonable care. The Recipient shall limit access to the Confidential Information to those employees and contractors who have a legitimate need to know and who are bound by confidentiality obligations at least as protective as those set forth in this Agreement.

3. EXCLUSIONS

Confidential Information does not include information that: (a) is or becomes publicly available through no fault of the Recipient; (b) was rightfully known to the Recipient prior to disclosure; or (c) is independently developed by the Recipient without use of the Confidential Information.

9. LIMITATION OF LIABILITY

IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES ARISING OUT OF OR RELATED TO THIS AGREEMENT, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. EACH PARTY'S TOTAL CUMULATIVE LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED TEN THOUSAND DOLLARS (\$10,000).

10. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of law principles.